

25TRCV03536 25TRCV03536

County: los-angeles

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Case Number: 25TRCV03536 Hearing Date: August 11, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JOANNA CAFUENTES

;

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO.,

INC.

;

Defendant.

Case

No.:

25TRCV03536

Hearing

Date:

August
11, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF JOANNA CAFUENTES' MOTION TO COMPEL
FURTHER RESPONSES TO REQUEST FOR PRODUCTION SET ONE FROM DEFENDANT AMERICAN
HONDA MOTOR CO., INC.

(2)

PLAINTIFF JOANNA CAFUENTES' REQUEST FOR
MONETARY SANCTIONS

MOVING PARTY: Plaintiff, Joanna Cafuentes

RESPONDING PARTY: Defendant, American Honda Motor Co., Inc.

(1)

Plaintiff

Joanna Cafuentes' Motion to Compel Further Responses to Request for Production Set
One from Defendant American Honda Motor Co., Inc. is DENIED pursuant to Code of
Civil Procedure section 2031.310, subdivision (a).

(2)

Plaintiff

Joanna Cafuentes' Request for Monetary Sanctions is DENIED pursuant to Code of
Civil Procedure section 2031.310, subdivision (h).

The Court considers the moving
papers filed on May 27, 2026, and the opposition brief filed on July 29, 2026. To date, no reply brief has been filed.

BACKGROUND

Factual Background

On October 15, 2025, plaintiff Joanna Cafuentes ("Plaintiff") filed the Complaint against defendants American Honda Motor Co., Inc. ("Defendant") and DOES 1 through 10. The Complaint includes one cause of action for (1) Violation of Song-Beverly Act – Breach of Express Warranty.

On December 18, 2025, Plaintiff served Defendant with Requests for Production, Set One. (Declaration of Timothy Lupinek ("Lupinek Decl."), ¶ 3, Exh. A.) Defendant provided responses on February 20, 2026. (Lupinek Decl., ¶ 4, Exh. B.)

On March 30, 2026, Plaintiff issued a meet-and-confer letter to Defendant, outlining the alleged deficiencies in Defendant's responses. (Lupinek Decl., ¶ 5, Exh. C.) Plaintiff requested a response by April 7, 2026. (Lupinek Decl., ¶ 5, Exh. C.)

On May 15, 2026, Plaintiff's counsel engaged in a telephonic meet-and-confer with Defendant's counsel. (Lupinek Decl., ¶ 6.) The parties managed to narrow the scope of the dispute to Requests for Production Nos. 56, 58, and 59; however, they remained at an impasse. (Lupinek Decl., ¶ 6.) The parties mutually agreed that Plaintiff's deadline to file a motion to compel is May 27, 2026. (Lupinek Decl., ¶ 7.)

LEGAL STANDARD

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover, "[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts

showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Plaintiff was required to meet and confer with Defendant before filing this motion. (Code Civ. Proc., § 2031.310, subd. (b)(2).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration “in support of a motion [to compel] shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998)

61 Cal.App.4th 1431, 1435.)

On March 30, 2026, Plaintiff issued a meet-and-confer letter to Defendant, outlining the alleged deficiencies in Defendant's responses. (Lupinek Decl., ¶ 5, Exh. C.) Plaintiff requested a response by April 7, 2026. (Lupinek Decl., ¶ 5, Exh. C.)

On May 15, 2026, Plaintiff's counsel engaged in a telephonic meet-and-confer with Defendant's counsel. (Lupinek Decl., ¶ 6.) The parties managed to narrow the scope of the dispute to Requests for Production Nos. 56, 58, and 59; however, they remained at an impasse. (Lupinek Decl., ¶ 6.) The parties mutually agreed that Plaintiff's deadline to file a motion to compel is May 27, 2026. (Lupinek Decl., ¶ 7.)

Accordingly, the Court finds that Plaintiff sufficiently met and conferred with Defendant before filing this motion.

DISCUSSION

Plaintiff moves to compel further responses to Requests for Production Nos. 56, 58, and 59. (MTCF, pp. 3:18-6:13.) Defendant contends that it has produced all relevant documents as outlined in AB 1755, specifically under Code of Civil Procedure section 871.26, subdivisions (h)(1)-(17), making Plaintiff's remaining requests exceed the permissible scope of discovery under the Song-Beverly Act. (MTCF, pp. 3:4-4:25.) However, the Court finds this argument to be irrelevant. Code of Civil Procedure section 871.26 does not govern these motions, nor does it restrict the type of discovery permitted in a Song-Beverly case. The Court will now proceed to examine the merits of the motion.

The Court has examined the papers and the separate statement concerning Requests for Production Nos. 56, 58, and 59. The Court finds that Plaintiff does not adequately demonstrate good cause for these requests.

Request

for Production No. 56

Plaintiff requests: "All DOCUMENTS reflecting YOUR efforts to preserve relevant and discoverable information in this matter, including any preservation letters, the custodians to whom such preservation letters were sent, the efforts undertaken to prevent against the deletion or destruction of information." (Plaintiff's Separate Statement, p. 1:8-11.)

As discussed, "[t]o establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." (Digital Music News LLC, *supra*, 226 Cal.App.4th at p. 224.)

Plaintiff contends that "Request 56 seeks documents reflecting Defendant's preservation efforts. This request seeks documents reflecting Defendant's efforts to preserve relevant and discoverable information in this matter—such as preservation letters, custodian notices, and steps taken to prevent deletion or destruction of information. These materials go directly to whether Defendant complied with its duty to preserve evidence once litigation was reasonably anticipated, and whether relevant documents may have been withheld or destroyed." (MTCF, p. 4:7-12.)

However, Defendant asserts that "Plaintiff[] ha[s] not alleged spoliation, identified any violation of a discovery order, or presented any evidence that [Defendant] has failed to preserve or produce relevant materials." (Opp., p. 6:19-20.) Consequently, it remains unclear how Defendant's preservation efforts are of consequence in the action.

As such, Plaintiff's request to compel further responses to Request for Production No. 56 is DENIED.

Request
for Production No. 58

Plaintiff requests: "Produce all activity log files contained on YOUR network (and any equipment needed to access the log files) regarding

Plaintiff's request for repurchase or replacement of the SUBJECT VEHICLE." (Plaintiff's Separate Statement, p. 3:10-21.)

Plaintiff argues that "Request 58 seeks documents concerning all activity log files contained on Defendant's network (and any equipment needed to access the log files) regarding Plaintiffs' request for repurchase or replacement of the SUBJECT VEHICLE.

Courts have established procedures for producing ESI, including requirements for identifying documents with specific request numbers and producing them in their native file format."

(MTCF, p. 4:20-24.) However,

Plaintiff fails to identify any disputed fact that is material to the case, nor does Plaintiff articulate how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.

As such, Plaintiff's request to compel further responses to Request for Production No. 58 is DENIED.

Request

for Production No. 69

Plaintiff requests: "All document destruction and data destruction logs reflecting any DOCUMENTS or data regarding the SUBJECT VEHICLE." (Plaintiff's Separate Statement, p. 5:20-21.)

Plaintiff argues that "Requests No. 69 seeks documents concerning Defendant's document and data destruction logs reflecting the Subject Vehicle. ... Courts and commentators likewise acknowledge that 'discovery on discovery'—such as inquiries into retention policies, custodians, and search methodologies—is appropriate where questions arise regarding the adequacy of a party's production. ... Defendant's retention and destruction policies are directly relevant to whether responsive records exist, whether any documents were deleted despite a duty to preserve, and whether its discovery responses are complete and made in good faith. Accordingly, further responses are necessary." (MTCF, p. 5:5-6, 11-13, 19-21.)

Again, Plaintiff has neither alleged spoliation nor identified any violation of a discovery order, nor has Plaintiff presented evidence demonstrating that Defendant has failed to preserve or produce relevant materials. Thus, it remains uncertain why the requested logs and data are of consequence in the action.

As such, Plaintiff's request to compel further responses to Request for Production No. 69 is DENIED.

Accordingly, the Plaintiff's Motion to Compel Further Responses to Request for Production Set One and request for monetary sanctions are DENIED.

ORDERS

1)

Plaintiff

Joanna Cafuentes' Motion to Compel Further Responses to Request for Production Set One from Defendant American Honda Motor Co., Inc. is DENIED.

2)

Plaintiff

Joanna Cafuentes' Request for Monetary Sanctions is DENIED.

3)

Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 11, 2026

Tamara

Hall

Judge

of the Superior Court